

Kamlesh Kumar And Others vs State Of U.P. & Others on 15 June, 2010

Court No. - 5

Case :- APPLICATION U/S 482 No. - 19630 of 2010

Petitioner :- Kamlesh Kumar And Others

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Alpana Dwivedi

Respondent Counsel :- Govt. Advocate

Hon'ble Rajesh Dayal Khare,J.

Heard learned counsel for the applicants and learned A.G.A. for the state respondents.

The present Application under Section 482 Cr.P.C. has been filed for quashing of the proceedings of Complaint Case No. 1660 of 2010, under Section 12 of the Domestic Violence and Womens Protection Act, 2005 at Police Station - Kotwali, District - Mainpuri, pending in the Court of the Chief Judicial Magistrate, Mainpuri.

It is contended by the learned counsel for the applicants that the opposite party no. 2 after being selected in B.T.C., went back to Haridwar and joined her assignment. It is further contended on behalf of the applicants that opposite party no. 2 after marriage, never returned back to the house of her inlaws, inspite of repeated requests by her husband. It is further argued that thereafter, the husband filed a petition of divorce under Section 13 of the Hindu Marriage Act, which was allowed. It is next contended that the opposite party no. 2 as a counter blast, initiated proceedings under Section 498A, 323, 504, 506 I.P.C. and 3/4 Dowry Prohibition Act at Police Station - Govind Nagar, District - Kanpur Nagar, and the arrest of the applicants was stayed by this Court, and thereafter, in order to harass the applicants, the present proceedings under Section 12 of the Domestic Violence Act has been initiated by the opposite party no. 2.

Issue notice to opposite party no. 2, returnable within four weeks. Steps be taken within a week.

Learned A.G.A. prays for and is granted four weeks time to file counter affidavit. The opposite party no. 2 may also file counter affidavit within the said period. As prayed by the learned counsel for the applicants two weeks thereafter is granted for filing rejoinder affidavit.

List after expiry of the aforesaid period.

Till the next date of listing, no coercive steps shall be taken against the applicants in the aforesaid case.

Order Date :- 15.6.2010 A. Verma